HEADNOTE

"1. A manufacturing method of a publicly used product is made available to the public by use pursuant to Art. 54(2) EPC if, at the relevant date, the person skilled in the art could establish the method without undue burden by analysing the product's composition. There is no support in the EPC for an additional requirement that the skilled person would need particular reasons for analysing the product.

2. Where a publicly available product discloses information which is relevant to the novelty of a claimed manufacturing method, the disclosure must be such that the skilled person can use the claimed method on the basis of their common general knowledge. Reproducibility of features which are not part of the claimed invention is not required."

COURT
Court of Appeal Luxembourg

PROCEEDINGS
Infringement action and Counterclaim for revocation

PATENT
EP 3 388 490

decorating natural leather

KEYWORDS
Appeal | claim interpretation | novelty | inventive step | public prior use

SUMMARY
The Court of Appeal Luxembourg ruled on an infringement action and counterclaim for revocation. The patent at issue relates to decorating natural leather. According to the headnotes of the decision, a manufacturing method becomes publicly available under Article 54(2) EPC through use of a public product. The skilled person can establish this method by analysing the product's composition without undue burden. Importantly, there is no requirement in the EPC that the skilled person must have particular reasons for conducting such analysis. Furthermore, when a publicly available product discloses information relevant to a claimed method's novelty, the disclosure must enable the skilled person to use that method. This enablement relies on the skilled person's common general knowledge. At the same time, reproducibility of features outside the claimed invention is not necessary for such disclosure to be sufficient.